

Tikka Ram & Another vs Smt. Shanti Verma on 28 June, 2024

Neutral Citation No. 2024:HHC:4154 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA
Criminal Revision No. 156 of 2022 Reserved on: 15.06.2024 .

Date of Decision: 28.06.2024 Tikka Ram & anotherPetitioners Versus Smt. Shanti Verma
....Respondent Coram Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?
Yes For the Petitioners : Mr. Peeyush Verma, Advocate.

For the Respondent : Mr. Ashok Sood, Senior Advocate with Ms. Pooja Verma.

Rakesh Kainthla, Judge The petitioner has filed the present petition against the order dated 12.08.2021, passed by learned Principal Judge, Family Court, Shimla vide which respondent (claimant before the learned Trial Court) was awarded maintenance of 4,000/- each from each of the petitioners (non-claimants/respondents before the learned Trial Court) (Parties shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

Whether reporters of the local papers may be allowed to see the judgment? Yes

2. Briefly stated, the facts giving rise to the present petition are that the claimant filed an application under Section 125 of Cr.P.C. for seeking maintenance @ 10,000/- per month. It .

was asserted that the claimant is a legally wedded wife of respondent No.1 and mother of respondent No.2. Respondent No.1 was a government servant, who had retired from the H.P. Horticulture Department in the year 1998. He is residing with Smt. Shankuntla widow of Sh. Duli Chand. Duli Chand committed suicide in the year 1995 stating that respondent No.1 had illicit relations with Shankuntla. The petitioner had to leave the company of respondent No.1 and reside with Respondent No.2.

Respondent No.1 instigated respondent No.2 not to keep the petitioner with him. The petitioner/claimant had to leave the house of respondent No.2 and reside in her maternal home.

Respondents did not pay any money to the petitioner and she is dependent upon her father. The petitioner's father-in-law had expired in the year 2009. The petitioner went to attend his Bhog Ceremony. The respondent no. 1 and the wife of respondent No.2 pleaded with the petitioner to return to the village. They also assured to take good care of the petitioner. The petitioner started residing at Village Dhaar, with respondent No.2. Respondent No.1 and other family members treated the petitioner properly, however, the conditions deteriorated and the respondents started harassing the petitioner. Respondents abused the petitioner in a .

state of intoxication. The petitioner had to leave the company of her son and reside with her father in the village Dubloo. He is unable to maintain the petitioner. The petitioner filed a complaint before the H.P.State Women Commission. The respondents agreed to provide two rooms and a kitchen to

the petitioner. Respondent No.1 agreed to provide 2000/- to the petitioner and respondent No.2 agreed to provide 500/- maintenance to her. Respondents only deposited an amount of 4800/- and stopped paying maintenance to the petitioner. Respondent No.1 knocked at the door of the room where the petitioner was staying on 29.10.2011.

When the petitioner did not open the door, the respondent broke the door and inflicted injuries upon the petitioner with a scythe and a small spade. The petitioner was taken to IGMCH Hospital. The Police arrived in the hospital and F.I.R. No.246 dated 30.10.2011 was registered in Police Station Dhalli for the commission of offences punishable under Sections 307, 452, 324 and 506 of IPC.

Respondent No.1 started threatening the petitioner in connivance with respondent No.2. The petitioner has no source of income.

Her father was unable to earn anything. Hence, the present petition was filed for seeking maintenance of 10,000/- per month.

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3. The petition was opposed by filing a reply taking preliminary objections regarding the lack of cause of action and the petitioner having not come to the Court with clean hands. The contents of the petition were denied on merits; however, the relationship between the parties was not disputed. It was asserted that respondents properly maintained the petitioner as per their capacity. The petitioner insisted that respondent No.1 should transfer his entire property in her name or dispose of the same and start residing with her in her parental village.

Respondent No. 1 refused to do so. Hence, the petitioner shifted to her matrimonial home. It was specifically denied that respondents maltreated the petitioner in any manner or that respondent No.1 had attacked the petitioner with a scythe and small spade. It was asserted that a false complaint was made by the petitioner against respondent No.1 to pressurize him to accede to her illegal demands. Hence, it was prayed that the petition be dismissed.

4. A rejoinder denying the contents of the reply and affirming those of the petition was filed.

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5. The parties were called upon to produce the evidence.

The petitioner examined herself (PW-1), Rajinder Kumar (PW-2), T.D.Sharma (PW-3), HC Prakash (PW-4) and Puran Chand (PW-

5). The respondent No.1 examined himself (RW-1).

6. Learned Trial Court held that the plea of the petitioner was duly corroborated by her evidence and documents. The plea taken by the respondents that the petitioner had left her home voluntarily was

not proved. The respondents claimed that the petitioner was earning 10,000/- per month by stitching and weaving was not established by any satisfactory evidence.

Respondent No.1 was a government employee and his monthly pension was 9500/-. Respondent No.2 was also a government employee and his monthly salary was 28,933/-. They also owned land. The respondents are under a moral duty to maintain the petitioner. Hence, the petition was allowed with an exemplary cost of 10,000/- to be shared by the respondents equally.

Respondents No.1 and 2 were directed to pay maintenance of 4000/- each to the petitioner from the date of filing of the petition.

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7. Feeling aggrieved and dissatisfied with the order passed by the learned Trial Court, the petitioners/respondents filed the present petition asserting that the learned Trial Court erred in awarding the maintenance to the petitioner/claimant.

The learned Trial Court failed to consider the defences raised by the petitioners/respondents. The allegations made in the petition that respondent No.1 was residing with his sister-in-law or that he had attacked the petitioner with a scythe and small spade were not correct. The petitioner could not have sought maintenance from her husband as well as her son because these rights are mutually exclusive. The son is liable to pay maintenance to his mother when father is unable to do so. The petitioner had no reasonable cause to reside separately from the respondents and claim maintenance. The learned Trial Court failed to notice that the petitioner had a monthly income of 10,000/- and she was not entitled to any maintenance. The petitioner made a false complaint against respondent No.1, due to which he remained in jail for more than 4 months. Respondent No.1 was unfit and incapable of earning anything. He was dependent upon his son for his basic needs. Hence, it was prayed that the present petition be allowed and the order passed by the learned Trial Court be set aside.

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8. I have heard Mr Peeyush Verma, learned counsel for the respondents and Mr. Ashok Sood, learned Senior counsel assisted by Ms. Pooja Verma, learned counsel for the petitioner.

9. Mr. Peeyush Verma, learned counsel for the respondents submitted that the learned Trial Court erred in awarding maintenance to the petitioner.

r A composite petition could not be filed against the husband and the son. The husband has primary liability to pay maintenance and the liability of the son will arise when the husband is unable to pay any maintenance. He relied upon the judgments of Mehrubhai Mandanbhai Odedaravs. Rainben Merubhai Odedara AIR 2000 Guj 277 and Raj Kumari Vs Yashodha Devi and Anr. 1978CrLJ600 in support of his submission. He prayed that the present petition be allowed and the order passed by the learned Trial Court be set aside.

10. Mr. Ashok Sood, learned Senior Counsel for the petitioner supported the order passed by the learned Trial Court and submitted that no interference is required with the same.

Petitioner had categorically stated that respondent No.1 attacked her and an F.I.R was registered against him for doing so. Her life .

is in danger and she cannot reside with the respondents. In these circumstances, she has a reasonable cause to live separately from the respondents. There is no prohibition in filing a petition against the husband and son as both of them are liable. The Court should construe the provisions of Section 125 of Cr.P.C. liberally.

He relied upon a judgment of the Hon'ble Supreme Court in Anuj Garg &ors. Vs. Deepak Kumar Garg in Criminal Appeal No. 1693 of 2022 decided on 28.09.2022 in support of his submission. He prayed that the present petition be dismissed.

11. I have given considerable thought to the submissions at Bar and have gone through the records carefully.

12. The present petition has been filed under Section 482 of Cr.P.C. However, the same should have been filed under Section 19(4) of the Family Courts Act because the said Section specifically provides for filing of revision in the proceedings conducted under Section 125 of Cr.P.C., therefore, the present petition has to be treated under Section 19(4) of Family Courts Act and not under Section 482 of Cr.P.C.

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13. It was laid down by the Hon'ble Supreme Court in Manju Ram Kalita v. State of Assam, (2009) 13 SCC 330: (2010) 1 SCC (Cri) 1015: 2009 SCC OnLine SC 1214 that the Court exercising revisional jurisdiction cannot reappreciate the facts unless there is some perversity. It was observed:

"9. So far as Issue 1 is concerned i.e. as to whether the appellant got married to Smt Ranju Sarma, is a pure question of fact. All three courts below have given concurrent findings regarding the factum of marriage and its validity. It has been held to be a valid marriage. It is a settled legal proposition that if the courts below have recorded the finding of fact, the question of reappreciation of evidence by the third court does not arise unless it is found to be totally perverse. The higher court does not sit as a regular court of appeal. Its function is to ensure that law is being properly administered. Such a court cannot embark upon the fruitless task of determining the issues by reappreciating the evidence."

14. This position was reiterated in Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460: (2012) 4 SCC (Civ) 687: (2013) 1 SCC (Cri) 986: 2012 SCC OnLine SC 724 wherein it was observed:

12. Section 397 of the Code vests the court with the power to call for and examine the records of an inferior court for the purposes of satisfying itself as to the legality and regularity of any proceedings or order made in a case.

The object of this provision is to set right a patent defect or an error of jurisdiction or law. There has to be a well-

founded error and it may not be appropriate for the court to scrutinise the orders, which upon the face of it bear a token of careful consideration and appear to be in accordance with the law. If one looks into the various .

judgments of this Court, it emerges that the revisional jurisdiction can be invoked where the decisions under challenge are grossly erroneous, there is no compliance with the provisions of law, the finding recorded is based on no evidence, material evidence is ignored or judicial discretion is exercised arbitrarily or perversely. These are not exhaustive classes but are merely indicative. Each case would have to be determined on its own merits.

15. Respondent No.1 stated while appearing as RW-1 that the petitioner is his wife and respondent No.2 is his son. This shows that the relationship between the parties was not disputed.

16. The petitioner claimed that respondent No.1 started residing with Shakuntala Devi and the petitioner was turned out of her matrimonial home. Mr. Peeyush Verma, learned counsel for the respondents submitted that this statement is not acceptable because the petitioner had claimed in para 3 of her petition that Duli Chand committed suicide and respondent No.1 had illicit relations with Shankuntla Devi wife of Duli Chand. The petitioner had left with no alternative but to shift residence with respondent No.2, which shows that the petitioner left the house of respondent No.1 voluntarily and she was not turned out of her matrimonial home. This submission will not assist the respondents because residing with a woman will give sufficient cause to leave her matrimonial home. It was laid down by this Court in Banti Devi versus Moti Ram 1992 (2) Shim. L. C. 255 that .

living with another woman during the subsistence of the first marriage will entitle the first wife to reside separately and claim maintenance. It was observed:

"8. It is settled by now that a second marriage or keeping a mistress by the husband entitles his wife to live separately. Further, solemnizing a second marriage when the first wife is living itself proves the neglect by the husband to maintain the first wife. (Please see Deochand v.

State of Maharashtra and another, AIR 1974 SC 1488 and Pellakuru Saymalamma @ Syamalamba v.

Pellakuru Sambaiah and another, (1988) 2 Crimes, 768). Therefore, I hold that Moti Ram has been neglecting to maintain Banti Devi and she is entitled to a maintenance allowance from him. As a result, Criminal Revision Petition No. 104 of 1990 filed by

Moti Ram is rejected."

17. Similar is the judgment in Rajathi vs. C Ganesan 1999 (6) SCC 326 wherein it was observed:

"The fact, however, remains in the present case that the husband is living with another woman. Proviso to sub-section (3) would squarely apply and justify the refusal of the wife to live with her husband.... Even though the wife was unable to prove that the husband had remarried, yet the fact remained that the husband was living with another woman. That would entitle the wife to live separately and would amount to neglect or refusal by the husband to maintain her.....

8. We may also have a look at the provisions of the Hindu Adoptions and Maintenance Act 1956, which provides for maintenance to a Hindu wife. Under Section 18 of this Act a Hindu wife, whether married .

before or after the commencement of this Act, shall be entitled to be maintained by her husband during her lifetime. Under sub-section (2) she will be entitled to live separate from her husband without forfeiting her claim to maintenance,- (a) if he is guilty of desertion, that is to say, of abandoning her without reasonable cause and without her consent or against her wish, or of wilfully neglecting her; (b) if he has treated her with such cruelty as to cause a reasonable apprehension in her mind that it will be harmful or injurious to live with her husband; (c) if he is suffering from a virulent form of leprosy; (d) if he has any other wife living; (e) if he keeps a concubine in the same house in which his wife is living or habitually resides with a concubine elsewhere; (f) if he has ceased to be a Hindu by conversion to another religion; and (g) if there is any other cause justifying her living separately. Under sub-section (3) a Hindu wife is not entitled to separate residence and maintenance from her husband if she is unchaste or ceases to be Hindu by conversion to another religion. It will be apposite to keep these provisions in view while considering the petition under Section 125 of the Code."

18. Thus, the petitioner had sufficient reason to reside separately from respondent No. 1 and claim maintenance from him. Hence, the submission that the contents of para 3 of the petition do not establish a reasonable cause to reside separately cannot be accepted.

19. The petitioner stated in her cross-examination that respondent No.1 has been residing with his widowed sister-in-law for 19 years. She had not filed any complaint to the police or .

panchayat. It was submitted that failure to file any complaint to the police or the Panchayat falsifies her version that respondent No.1 is residing with his widowed sister-in-law. This submission cannot be accepted. The police or the Panchayat is not competent authority to take action against a person residing with another voluntarily; therefore, no fruitful purpose would have been served by making the complaint to the police or the Panchayat.

20. In any case, the petitioner had lodged an F.I.R.(Ext.PW-4/A) before the police in which she had specifically asserted that respondent No.1 was residing with Shakuntla Devi.

He used to beat her. These averments corroborate the versions of the petitioner in the Court.

21. Puran Chand (PW-5) also corroborated the version of the petitioner. He stated that respondent No.1 left the petitioner and started residing with his widowed sister-in-law. The petitioner started residing with respondent No.2. It was submitted that he is the father of the petitioner. However, that is not sufficient to doubt his testimony because being the father; he would have personal knowledge regarding the affairs of the petitioner and respondent No.1.

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22. The petitioner asserted that respondent No.1 attacked her with a scythe. This version of the petitioner was duly corroborated by the F.I.R. (Ext. PW-4/A). Respondent No.1 also admitted that a criminal case was registered against him and he was released after giving him the benefit of doubt. This corroborates the petitioner's version that her life is in danger in the respondent's house.

23. The learned Trial Court held that respondent No.1 was treating the petitioner with cruelty due to which she could not reside with him. The petitioner asserted that she started residing with respondent No.2 and he also harassed him.

24. Tikka Ram-respondent No.1 admitted in his cross-

examination that the petitioner visited her matrimonial home on the death of her father-in-law and she was persuaded to reside in her matrimonial home. He admitted that she resided with respondent No.2 for about 1½ years. This corroborates the version of the petitioner that she was residing with respondent No.2. The Petitioner specifically asserted that respondent No.2 harassed at the instance of respondent No.1. Respondent No.2 did not appear in the witness box to deny this fact; hence the learned Trial Court .

had rightly accepted the version of the petitioner to this effect.

25. Thus, it was proved on record that respondents harassed the petitioner due to which she had to reside separately from them. It was laid down by the Hon'ble Supreme Court in Sirajmohmedkhan Janmohamadkhan v. Hafizunnisa Yasinkhan, (1981) 4 SCC 250: 1981 SCC (Cri) 829 that where a wife has a reasonable apprehension that she would be physically harmed, she has a reasonable cause to reside separately and claim maintenance. It was observed:

20. A clear perusal of this provision manifestly shows that it was meant to give a clear instance of circumstances which may be treated as a just ground for the refusal of the wife to live with her husband. As already indicated, by virtue of this provision, the proviso takes within its sweep all other circumstances similar to the contingencies contemplated in the amending provision as also other instances of physical, mental

or legal cruelty not excluding the impotence of the husband. These circumstances, therefore, clearly show that the grounds on which the wife refuses to live with her husband should be just and reasonable as contemplated by the proviso. Similarly, where the wife has a reasonable apprehension arising from the conduct of the husband that she is likely to be physically harmed due to persistent demands of dowry from her husband's parents or relations, such an apprehension also would be manifestly a reasonable justification for the wife's refusal to live with her husband.

Instances of this nature may be multiplied but we have mentioned some of the circumstances to show the real scope and ambit of the proviso and the amending provision which is, as already indicated, by no means exhaustive.

26. The respondents claimed that the petitioner was .

earning 10,000/- by sewing the clothes, however, no evidence was led to this effect. Respondent No.1 stated in his examination-

in-chief that the petitioner is sewing and weaving and she is earning 10,000/- per month. He stated in his cross-examination that he was not aware of the place where the petitioner is residing.

This shows that he does not even know the residence of the petitioner. Hence, his testimony that the petitioner is earning 10,000/- per month by sewing clothes cannot be accepted.

27. Even otherwise, the petitioner has to survive and any efforts made by her to survive after she had been deserted by her husband cannot be used to deny maintenance to her. It was laid down by the Hon'ble Supreme Court in *Rajathi Versus C. Ganeshan* AIR 1999 SC 2374 that words unable to maintain herself would include the means available with the wife when she was living with her husband and does not include the efforts made by her after desertion to survive. It was observed:

"The words "unable to maintain herself" would mean that means available to the deserted wife while she was living with her husband and would not take within itself the efforts made by the wife after the desertion to survive somehow. Section 125 is enacted on the premise that it is the obligation of the husband to maintain his wife, children .

and parents. It will, therefore, be for him to show that he has no sufficient means to discharge his obligation and that he did not neglect or refuse to maintain them or any one of them."

28. Thus, no advantage can be derived from the income obtained by the petitioner by doing the work of sewing or weaving.

29. Respondent No.1 admitted in his cross-examination that he was getting a pension of 9500/- and he had 9-10 bighas of land. He also admitted that he had sold the land. Thus, the learned Trial

Court had rightly awarded monthly maintenance of 4000/- to the petitioner from respondent No. 1. This amount cannot be said to be excessive, as the same would leave an amount of 4500/- with the respondent no. 1 and should be sufficient to maintain him.

30. Respondent No.2 is a government servant. Rajinder Kumar (PW-2) proved the annual salary certificate (Ext.PW-2/A) and salary statements (Ext.PW-2/B to Ext.PW-2/D). Salary statement (Ext.PW-2/D) shows that respondent No.2 was getting a gross pay of 28,933/-. Since he is a son and is liable to pay maintenance to his mother, who is unable to maintain herself, therefore, the learned Trial Court had rightly ordered him to pay monthly maintenance of 4000/-. The maintenance amount of .

4000/- per month cannot be said to be excessive and no interference is required with the same.

31. It was submitted that a joint petition cannot be filed against the husband and the son because the primary liability to maintain the wife is that of the husband. Reliance was placed upon the judgment of the Gujarat High Court in Merubhai (supra). This judgment will not assist the respondents because the Court was concerned with Sections 18 to 20 of the Hindu Adoption and Maintenance Act, which is not the case here. The petitioner has filed the present petition under Section 125 of Cr.P.C.

32. It was submitted that the son would be liable to maintain his mother when her husband is unable to do so. In the present case, respondent No.1 is earning 9500/- which is not sufficient to provide maintenance of 8000/- to the petitioner as assessed by the learned Trial Court. Therefore, respondent No.2 being the son is liable to pay the maintenance to the petitioner.

33. Reliance was placed upon Raj Kumari's case (supra), however, the Court was only concerned with the fact whether a married daughter is liable to pay maintenance to her .

mother, which is not the question in the present case; therefore, no advantage can be derived from the cited judgment.

34. The Hon'ble Supreme Court held in Anju Garg's case (supra) that the provisions of maintenance is to be construed liberally in favour of the wife, therefore, the learned Trial Court had not committed any error while awarding the maintenance to the petitioner.

35. Consequently, the present petition fails and the same is dismissed, so also the pending application(s), if any.

(Rakesh Kainthla) Judge 28th June, 2024.

(Ravinder)